

Number 27 *of* 1965

SUCCESSION ACT 1965

REVISED

Updated to 2 November 2017

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All Acts up to and including *Mediation Act 2017* (27/2017), enacted 2 October 2017, and all statutory instruments up to and including *Children and Family Relationships Act 2015 (Commencement) (No. 2) Order 2017* (S.I. No. 474 of 2017), made 2 November 2017, were considered in the preparation of this Revised Act.

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AN ACT TO REFORM THE LAW RELATING TO SUCCESSION TO THE PROPERTY OF DECEASED PERSONS AND, IN PARTICULAR, THE DEVOLUTION, ADMINISTRATION, TESTAMENTARY DISPOSITION AND DISTRIBUTION ON INTESTACY OF SUCH PROPERTY, AND TO PROVIDE FOR RELATED MATTERS. [22*nd December*, 1965.]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:—

PART I

Preliminary and General

Short title.

1.—This Act may be cited as the Succession Act, 1965.

Commencement.

2.—This Act shall come into operation on such day, not earlier than the 1st day of July, 1966, as the Minister by order appoints.

Interpretation.

3.—(1) In this Act, except where the context otherwise requires—

"administration", in relation to the estate of a deceased person, means letters of administration, whether with or without a will annexed, and whether granted for special or limited purposes;

"administrator" means a person to whom administration is granted;

['civil partner' has the meaning assigned to it by the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010;**]**

"conveyance" includes a mortgage, charge, lease, assent, transfer, disclaimer, release and every other assurance of property by any instrument except a will;

"the court" shall be construed in accordance with section 6;

"estate" shall be construed in accordance with section 14;

"grant" means grant of representation;

"infant" means a person under the age of twenty-one years;

"an intestate" means a person who leaves no will or leaves a will but leaves undisposed of some beneficial interest in his estate, and "intestate" shall be construed accordingly;

[New]

(6) Sureties to administration bonds shall not be required when the grant is made to a trust corporation.

[New]

(7) An administration bond issued by a guarantee society or insurance company approved by the President of the High Court shall be acceptable for the purposes of this section whether the application for the grant is made in person or by a solicitor.

Applications for grants and revocations.

[1857 (c. 79) ss. 50, 63]

35.—(1) An application for the grant or revocation of representation may be made to the Probate Office or the district probate registry for the district where the deceased, at the time of his death, had a fixed place of abode.

(2) The application may be made either in person or through a solicitor.

[R.S.C., O. 79, r. 3; O. 80, r. 3]

(3) Where, in any contentious matter arising out of an application to the Probate Office, the High Court is satisfied that the Circuit Court has jurisdiction in the matter, the High Court may remit the matter to the judge of the circuit where the deceased, at the time of his death, had a fixed place of abode and the said judge shall proceed in the matter as if the application had been made to the Circuit Court in the first instance.

Grants in district probate registries.

[1857 (c. 79) ss. 50, 52, 54]

36.—(1) A grant may be made in common form by a district probate registrar in the name of the High Court and under the seal of the registry where the deceased, at the time of his death, had a fixed place of abode within the district where the application for the grant is made.

(2) No grant shall be made by a district probate registrar in any case in which there is contention until the contention is disposed of, or in any case in which it appears to him that a grant ought not to be made without the direction of the Court.

(3) In any case where it appears doubtful to a district probate registrar whether a grant should or should not be made, or where any question arises in relation to a grant, or an application for a grant, the district probate registrar shall send a statement of the matter to the Probate Office for the directions of a judge of the High Court for the time being exercising probate jurisdiction, and the judge may direct the district probate registrar to proceed with the matter in accordance with such instructions as the judge thinks necessary, or may forbid any further proceedings by the district probate registrar in relation to the matter, leaving the party applying for the grant to apply to the High Court through the Probate Office or, if the case is within the jurisdiction of the Circuit Court, to that court.

[1857 (c. 79) ss. 53, 55, 56; 1859 (c. 31) ss. 21, 22]

(4) A district probate registrar shall send to the Probate Office a notice in the prescribed form of every application made in the registry for a grant as soon as may be after the application has been made, and no grant shall be made by him until he has received from that Office a certificate that no other application appears to have been made in respect of the estate of the deceased.

(5) The certificate shall be forwarded as soon as may be to the district probate registrar.

(6) All notices so transmitted to the Probate Office shall be filed and kept in that Office.

(7) Where any such notice is received from any district probate registry, the Probate Officer shall examine all notices of applications for grants received from the several other district probate registries and all applications for grants made at the Probate Office, so far as may be necessary for the purpose of ascertaining whether more than one application for a grant in respect of the estate of the same deceased person has been made, and shall communicate with the district probate registrar as occasion may require in relation thereto.

(8) A district probate registrar shall, twice in every month, transmit to the Probate Office a list in the prescribed form of the grants made by him and not included in a

State as ultimate intestate successor.

[New. Replaces escheat and *bona vacantia*]

[Cf. 1954 (No. 25) s. 31]

73.—(1) In default of any person taking the estate of an intestate, whether under this Part or otherwise, the State shall take the estate as ultimate intestate successor.

(2) The Minister for Finance may, if he thinks proper to do so, waive, in whole or in part and in favour of such person and upon such terms (whether including or not including the payment of money) as he thinks proper having regard to all the circumstances of the case, the right of the State under this section.

(3) Section 32 of the State Property Act, 1954 (which provides for the disclaimer of certain land devolving on the State by way of escheat or as *bona vacantia*) shall extend to the grantee's interest under a fee farm grant and the lessee's interest under a lease, where the State has a right to such interest as ultimate intestate successor.

Partial intestacy.

[1830 (c. 40)]

74.—Where the will of a testator effectively disposes of part only of his estate, the remainder shall be distributed as if he had died intestate and left no other estate.

Construction of documents.

[New]

75.—(1) References to any Statutes of Distribution in an instrument *inter vivos* made, or in a will coming into operation, after the commencement of this Act shall, unless the contrary thereby appears, be construed as references to this Part; and references in such an instrument or will to statutory next-of-kin shall, unless the contrary thereby appears, be construed as referring to the persons who would succeed on an intestacy under the foregoing provisions of this Part.

(2) Trusts declared by reference to any Statutes of Distribution in an instrument *inter vivos* made, or in a will coming into operation, before the commencement of this Act shall, unless the contrary thereby appears, be construed as referring to the enactments (other than the Intestates' Estates Act, 1954) relating to the distribution of effects of intestates which were in force immediately before the commencement of this Act.

PART VII

WILLS

Property which may be disposed of by will.

[1837 (c. 26) s. 3]

76.—A person may by his will, executed in accordance with this Act, dispose of all property which he is beneficially entitled to at the time of his death and which on his death devolves on his personal representatives.

Capacity to make a will.

[1837 (c. 26) s. 7 amended]

77.—(1) To be valid a will shall be made by a person who—

(*a*) has attained the age of eighteen years or is or has been married, and

(*b*) is of sound disposing mind.

[1964 (No. 7) s. 7 (7)]

(2) A person who is entitled to appoint a guardian of an infant may make the appointment by will notwithstanding that he is not a person to whom paragraph (*a*) of subsection (1) applies.

Signing and witnessing will.

[1837 (c. 26) s. 9 and 1852 (c. 24) s. 1]

78.—To be valid a will shall be in writing and be executed in accordance with the following rules:

1. It shall be signed at the foot or end thereof by the testator, or by some person in his presence and by his direction.

2. Such signature shall be made or acknowledged by the testator in the presence of each of two or more witnesses, present at the same time, and each witness shall attest by his signature the signature of the testator in the presence

FIRST SCHEDULE

Rules as to Application of Assets

Part I

Rules as to payment of debts where the estate is insolvent

Section 46.

1. The funeral, testamentary and administration expenses have priority.

[New as to estates administered out of court]

2. Subject as aforesaid, the same rules shall prevail and be observed as to the respective rights of secured and unsecured creditors and as to debts and liabilities provable and as to the valuation of annuities and future and contingent liabilities, respectively, and as to the priorities of debts and liabilities as may be in force for the time being under the law of bankruptcy with respect to the assets of persons adjudged bankrupt.

3. In the application of the said rules the date of death shall be substituted for the date of adjudication in bankruptcy.

Part II

Order of application of assets where the estate is solvent

[New]

1. Property of the deceased undisposed of by will, subject to the retention thereout of a fund sufficient to meet any pecuniary legacies.

2. Property of the deceased not specifically devised or bequeathed but included (either by a specific or general description) in a residuary gift, subject to the retention out of such property of a fund sufficient to meet any pecuniary legacies, so far as not provided for as aforesaid.

3. Property of the deceased specifically appropriated or devised or bequeathed (either by a specific or general description) for the payment of debts.

4. Property of the deceased charged with, or devised or bequeathed (either by a specific or general description) subject to a charge for, the payment of debts.

5. The fund, if any, retained to meet pecuniary legacies.

6. Property specifically devised or bequeathed, rateably according to value.

7. Property appointed by will under a general power, rateably according to value.

8. The following provisions shall also apply—

(*a*) The order of application may be varied by the will of the deceased.

(*b*) This Part of this Schedule does not affect the liability of land to answer the death duty imposed thereon in exoneration of other assets.

Section 8.

SECOND SCHEDULE

Repeals